**JABULANI GUTE**

**v**

**TOPGROUND ENTERPRISES (PVT) LTD**

**And**

**THE PROVINCIAL MINING DIRECTOR MIDLANDS**

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 9 April 2026 & 17 August 2026

**Application for reinstatement of an appeal**

*L. Chimire,* for the applicant
*E. T. Moyo,* for the 1st respondent

**DUBE-BANDA J:**

[1] This is a chamber application for a reinstatement of an appeal dismissed by the full bench of this court for want of prosecution. The application is opposed by the first respondent, Topground Enterprises (Pvt) Ltd. The second respondent, the Provincial Mining Director Midlands, neither filed opposing papers nor sought to participate in the hearing; in the circumstances, I take the view it has taken a position to abide by the decision of the court.

[2] This application will be better understood from the following background. The applicant is the owner of a mining claim called Masoro 87, while the first respondent is the owner of a mining claim called Masoro 8. The dispute between the parties relates to allegations of underground mining encroachment. The first respondent contends that it has been mining an inclined shaft following its primary reef, and the applicant sank a vertical shaft that intercepts that reef. *Per contra*, the applicant contends that the shaft he opened is within the bounds of his claim. The first respondent lodged a complaint with the Provincial Mining Director and based on the parties' submission and a ground visit by a Surveyor and an Engineer; the Director made a determination dated 7 November 2025. In the determination, the second respondent noted that:

a) "Masoro 8 mine was registered by Minehead P/L on 11 March 1994 and transferred to Topground Enterprises P/L on 30 November 1999.
b) Masoro 87 mine was registered by Misheck Mizeke on 19 January 2015 and there is no record of transfer to Jabulani Gute.
c) There is an underground mining operation at Masoro 8 and they access their underground workings *via* a steeply inclined shaft at about 45 degrees. The shaft runs up to 2 level, then there is a sub-vertical shaft extending from 2 level to 4 level.
d) The Masoro 8 shaft entrance is at a distance of 19.065m from the boundary between Masoro 87 and Masoro 8 Mines, and is located inside Masoro 8 Mine.
e) The shaft that Topground Mining (Masoro 8) complained about is a vertical shaft approximately 2m in depth sunk by Masoro 87 Mine. This shaft is within the bounds of Masoro 87 and at distance of 8.9m from the boundary.
f) Masoro 8 workings started within Masoro 8 boundaries following inclined reef and are now beyond vertical limits of Masoro 8 boundaries.
g) Section 171 of the Mines and Minerals Act stipulates that:
   171(3) Every holder of a registered regular block of precious metal reef claims shall possess the extra-lateral rights of pursuit of rights and mining the following portions of his discovery reef as it descends outside the vertical limits of his block ….
   Determination
h) According to s 171 of the Mines and Minerals Act [*Chapter 21:05*], Masoro 8 holder has been mining following their discovery and primary reef and should exercise extra-lateral mining rights following their primary reef.
i) Masoro 87 has sunk a shaft on a position that is above and intercepting Masoro 8's primary reef, and the position is not their discovery point.
j) Registered holder of Masoro 87 is hereby ordered not to hole into Masoro 8 underground workings or to mine the same reef being followed by Masoro 8 miner as it does not outcrop within Masoro 87 boundaries.
k) Any stoppage of operations order is uplifted."

[3] Aggrieved by the determination of the second respondent, the applicant noted an appeal in this court in case number HCMSC 545/25. At the hearing, the applicant was in default, and the court dismissed the appeal for want of prosecution. It is against this background that the applicant filed this application seeking reinstatement of the dismissed appeal.

[4] Both parties raised a preliminary objection. The first respondent raised a preliminary objection that the application is not properly before court for want of jurisdiction. It was argued that there is no jurisdictional basis on which a single judge sitting in chambers may entertain an application to reinstate an appeal that has been dismissed for want of prosecution by a full appellate bench. It was contended that the court has not been referred to any provision of statute

or rule of this court upon which such an application can be made. It was sought that on this basis alone the application ought to be dismissed.

[5] Mr *Chimire,* counsel for the applicant, also took a preliminary objection that there is no valid opposition before the court. It was submitted that the opposing affidavit is fatally defective in that there is no date on which the commissioner of oaths commissioned the affidavit. Counsel argued that an affidavit must include the date on which the deponent took the oath and the date on which the commissioner commissioned the affidavit. It was submitted that because the affidavit has no date on which the commissioner commissioned it, the opposing affidavit is fatally defective, and without an opposing affidavit, there is no valid notice of opposition, and the application must be dealt with as unopposed.

[6] The parties argued about which preliminary objection must be the first to be determined. Mr *Moyo*, counsel for the first respondent, submitted and insisted that the issue of jurisdiction goes to the root of the matter and must be the first to be determined. *Per contra*, Mr *Chimire* submitted that the issue of the validity of the notice of opposition must be determined first, because the first respondent's right of audience must be predicated on a valid notice of opposition. In other words, the argument is that without a valid notice of opposition, there is no respondent before court to raise the issue of jurisdiction.

[7] Mr *Chimire's* argument, at a superficial level, appears to be persuasive; however, it cannot withstand closer scrutiny. This is so because a court or a judge does not assume jurisdiction in a matter where it or he has no jurisdiction because the application is not opposed. In an unopposed matter, the court or judge must still be satisfied that it or he has jurisdiction to hear the matter. If the court or judge has no jurisdiction, the application will be struck off the roll notwithstanding that it is unopposed. In *Benyure* v *Benyure* HH316-25, the court said the fact that the matter was not defended was inconsequential. The grant of an order is a judicial function. The court must be satisfied that a litigant has proved his or her case in terms of the requirements of the law. I accept it as trite that the fact that a matter is not opposed is of no moment.

[8] In general, jurisdiction denotes the power or competence that a court has to hear and determine an issue brought before it. See: *Graaff-Reinet Municipality v Van Ryneveld's Pass Irrigation Board* 1950 (2) SA 420 (A) at 424; *Universal City Studios Inc v Network Video (Pty) Ltd* 1986 (2) SA 734 (A) at 754G-755E. Jurisdiction is the gateway or the entrance point for a judge or court to hear and determine a matter. It is a fundamental issue. My view is that if it has come to the attention of the court or judge that jurisdiction is an issue to be resolved, that cannot be ignored or sidelined merely because the matter is not opposed. In fact, the court may raise the issue of jurisdiction *mero motu*. If a court finds that it lacks jurisdiction to hear a matter, it has no authority at law to proceed any further, meaning it cannot adjudicate on the validity of the notice of opposition. The competency to make any ruling depends entirely on the court first establishing its jurisdiction. Once the court confirms it has jurisdiction, it can then move on to procedural and technical matters, such as determining whether the notice of opposition is invalid or fatally defective. In the circumstances, I agree with Mr *Moyo* that the issue of jurisdiction must be the first to be determined.

[9] Mr *Chimire* submitted, placing reliance on the case of *Dube* v *Matseka* HH96-18, that a single judge sitting in chambers has jurisdiction to reinstate an appeal dismissed for want of prosecution. Mr *Moyo* submitted that the decision in *Dube v Matseka* has since been overruled by the Supreme Court in *Dube & Ors* v *TM Supermarkets (Pvt) Ltd* SC117-22. I agree. In any event, on the principle of *stare decisis,* I am bound to follow the Supreme Court decision. The further argument that in *Dube & Ors v TM Supermarkets (Pvt) Ltd (supra)* the court was interpreting the rules of the Supreme Court is not persuasive. The court was not interpreting a rule but lamenting the absence of a rule empowering a judge sitting in chambers to reinstate an appeal dismissed by the full bench for want of prosecution.

[10] As stated above, the appeal sought to be reinstated was dismissed by a panel of two judges. It is a decision of a full bench of this court, sitting as an appellate court. It is trite that a single judge sitting in chambers acts as a lower authority than a full bench sitting in the appeal court, and thus at common law has no jurisdiction to reinstate an appeal dismissed by a full bench. Jurisdiction or power to reinstate such an appeal can only be derived from legislation or rules

of court. There is neither legislative provision nor rule of court which empowers a single judge in chambers to reinstate an appeal dismissed by a full bench for want of prosecution. See: *Machiels* v *Coghlan, Welsh & Guest* S-176-98. In *Dube & Ors* v *TM Supermarkets (Pvt) Ltd* SC117-22 the court said:

> "Substantively, there was no jurisdictional basis upon which I, as a single Judge sitting in chambers, could reinstate a civil appeal that was dismissed by a full court. In any event, the applicants had not suggested any basis for doing so."

[11] As stated above, there is no jurisdictional basis on which a single judge sitting in chambers could reinstate the civil appeal sought to be reinstated in this application. Mr *Moyo* sought that the application must be dismissed with costs. I do not agree. I cannot dismiss the application because I have not determined it on the merits. It can merely be struck off the roll. It is for the above reasons that this application stands to be struck off the roll.

[12] The question of costs remains to be considered. Good grounds exist for a departure from the general rule that costs follow the cause. Given the circumstances of this matter, and the fact that I have not determined the preliminary objection regarding the validity of the notice of opposition, it will be inappropriate to award costs in favour of the first respondent. The interest of justice requires that there be no order as to costs.

In the result, I make the following order:

a) The preliminary objection that a single judge of the High Court sitting in chambers has no jurisdiction or power to reinstate an appeal dismissed for want of prosecution by a full bench of the High Court is upheld.
b) The application is struck off the roll with no order as to costs.

*Masawi & Partners*, applicant's legal practitioners
*Mushoriwa Moyo*, 1st respondent's legal practitioners